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1. PURPOSE

This Departmental Manual (DM) provides procedures for United States Department of Agriculture (USDA) to meet the requirements of the [Departmental Regulation \(DR\) 5600-005](#), *Environmental Management*. The DM also includes procedures that ensure compliance with the waste management requirements in [DR 5600-006](#), *Sustainable Operations*.

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

This DM supersedes DM 5600-001, *Environmental Pollution, Control, and Abatement Manual* dated November 18, 2004.

3. SCOPE

This DM applies to all USDA Mission Areas, agencies, and staff offices.

- a. It applies to all USDA facilities and properties, owned, managed, or leased (hereafter referred to as USDA properties); and all activities conducted on USDA properties.
- b. It applies to all activities performed by USDA's employees and appointees.
- c. It applies to activities performed by USDA's contractors, permittees, grantees, and concession partners, when they are conducting those activities on USDA properties.
- d. It applies to activities performed on non-USDA properties by USDA's contractors when conducting or supporting environmental response or compliance actions under contract to a Mission Area, agency, or staff office.

4. ENVIRONMENTAL COMPLIANCE PROGRAM

- a. Environmental Compliance Plan (ECP)

(1) ECP Scope

Agencies and staff offices will develop ECPs as follows:

- (a) Include the facilities with the highest potential risk of impacting human health and the environment;
- (b) Address only the environmental requirements and associated equipment and systems managed by the agency, or staff office when leasing to other tenants or as a tenant;
- (c) Maintain the ECPs at any appropriate level, such as agency, regional, area, or facility level; and
- (d) Utilize existing agency databases, as possible, to document the required elements.

(2) ECP Elements

ECPs include the following elements:

- (a) Compliance inventory;
- (b) Environmental audit program;

- (c) Tracking and Reporting of Notices of Violation (NOV);
- (d) Corrective action program; and
- (e) Training Requirements.

b. Compliance Inventory

- (1) The ECP includes an inventory of the environmental requirements and associated equipment and systems applicable to each facility it covers.
- (2) Inventories include the following environmental requirements, equipment, and systems, as applicable:
 - (a) Hazardous waste and material storage locations;
 - (b) Heating, Ventilation, and Air Conditioning (HVAC) unit, refrigerator, or freezer containing more than 50 pounds of ozone-depleting refrigerant;
 - (c) Spill Prevention, Control, and Countermeasure (SPCC) Plan;
 - (d) Underground or above ground storage tanks, except portable tanks;
 - (e) Public Water Systems regulated under the *Safe Drinking Water Act*, [42 United States Code \(U.S.C.\) §§ 300f](#), *et seq.*;
 - (f) National Pollutant Discharge Elimination System (NPDES) permits; and
 - (g) Environmental permits and the equipment and systems the permits address, including, but not limited to:
 - 1 Boilers;
 - 2 Generators;
 - 3 Incinerators;
 - 4 Wastewater facilities, except septic systems;
 - 5 Paint spray booths;
 - 6 Parts washers; and
 - 7 Cooling towers.

- (3) The ECP identifies the staff position responsible for the compliance of each of the requirements, equipment, and system in the inventory.

c. Environmental Audit Program

- (1) The auditing program in the ECP includes a schedule of the audits required for all facilities covered by the plan.
 - (a) Each facility will self-audit.
 - (b) Each facility will have a second-party or third-party audit at least every 5 years. Exceptions may be made for facilities that have limited environmental requirements.
 - (c) Agencies can choose to conduct the required second- and third-party audits during the 5-year cycle on:
 - 1 A representative number of facilities that are under the management of a single manager;
 - 2 A targeted group of facilities biased toward recurring compliance issues or common activities that represent a high environmental liability risk; or
 - 3 A combination of the conditions stated in Sections 4c(1)(c)1 and 2.
 - (d) The ECP will include an explanation of the approach and objectives for the audit program.
 - 1 Provide or reference the protocol for the audits. The protocol could be an agency-specific procedure or a standard reference. Standard references include the [American Society for Testing and Materials \(ASTM\) E2107-20 Standard Practice for Environmental Regulatory Compliance Audits](#) or the U.S. Army Corps of Engineer's [The Environmental Assessment and Management \(TEAM\) Guide](#).
 - 2 List and justify the exclusion of facilities from second- or third-party audits.
 - 3 If the approach is to audit a representative number of facilities, justify the number of facilities being audited, to ensure that the auditing is representative and comprehensive.
 - 4 For programs that audit facilities based on bias or a combination approach:
 - a Provide a summary statement about the overall auditing approach; and

- (b) Each year, update the rationale for auditing the groups of facilities chosen for that year.
- (2) The auditing program will also require:
 - (a) Written reports for all audits by facility that include the protocol for the audit and a list of findings; and
 - (b) A strategy for reporting the results of the audit to upper management and facility personnel.
- (3) Audit findings are grouped into three categories.
 - (a) Major non-compliance: A condition that is likely to lead to an unpermitted release or discharge of pollutants or result in a penalty.
 - (b) Minor non-compliance: A condition that is unlikely to lead to an unpermitted release or discharge of pollutants or result in a penalty.
 - (c) Best practice recommendation: A recommendation for improved operations.
- (4) Audits will include all environmental compliance areas that are applicable to each facility. These requirements may include, but are not limited to:
 - (a) Air pollution;
 - (b) Solid waste management;
 - (c) Hazardous waste management;
 - (d) Hazardous materials storage and management;
 - (e) Spill prevention and control;
 - (f) Hazardous substance release response;
 - (g) Universal waste;
 - (h) Waste oil;
 - (i) Hazard communication;
 - (j) Emergency planning and community right-to-know;
 - (k) Aboveground and underground storage tank management;

- (l) Wastewater management;
- (m) Stormwater management;
- (n) Drinking water management;
- (o) Management of lead, polychlorinated biphenyls, and asbestos-containing materials;
- (p) Pesticide and herbicide management; and
- (q) Pollution prevention, waste minimization, and green chemistry.

d. Corrective Action Program

- (1) The corrective action program includes procedures to track and correct audit findings, NOVs, and other notices of non-compliance.
- (2) For NOVs, Mission Areas, agencies, and staff offices will:
 - (a) Report all notices received in a fiscal year to the Environmental Management Division (EMD) within the Office of Property and Environmental Management (OPEM), as part of the annual data call specified in Section 9b, *Data Calls*;
 - (b) Perform corrective actions within the time frame specified in the notice; and
 - (c) For notices that are not resolved within the specified time frame:
 - 1 Report the notice to the USDA Office of the General Counsel (OGC); and
 - 2 Develop a Corrective Action Plan with a schedule to bring the facility back into compliance.

e. Training Requirements

- (1) All staff who handle hazardous materials or wastes should take training on how to perform their duties in an environmentally safe manner. This should include training on proper disposal practices.
- (2) Environmental Program Managers should take an overview course in environmental compliance law and auditing.
- (3) Equivalent education or work experience can be used as a substitute for courses that are not mandatory.

- (4) Training for staff that operate the equipment, or the systems listed in Section 4b, *Compliance Inventory* will include proper operation, record keeping, and reporting, in accordance with the state requirements. This includes training to maintain required licenses to operate.
- (5) Supervisors and managers of these staff should have training in environmental management and liability.

5. ENVIRONMENTAL PREPAREDNESS AND EMERGENCY RESPONSE

USDA Mission Areas, agencies, and staff offices will comply with [40 Code of Federal Regulations \(CFR\) § 300](#), *National Oil and Hazardous Substances Pollution Contingency Plan (NCP)*. The NCP addresses how to report and respond to discharges of oil and releases of hazardous substances, pollutants, and contaminants (hereafter referred to as spills). State regulations may also apply. The three basic functions performed under the NCP are notification and communications, response operations, and preparedness planning and coordination for response. USDA agencies and staff offices also have a role in supporting spill response as members of the National Response Team (NRT) and Regional Response Teams (RRT). Under the NCP, USDA agencies and staff offices do not have the delegated authority to direct Emergency Response for the cleanup of spills that must be reported. That authority, even for spills to USDA property, is delegated to the U.S. Environmental Protection Agency (EPA) and the U.S. Coast Guard (USCG). USDA agencies and staff offices are required to clean up the spills caused by their employees.

a. Notification and Communication

(1) Reporting Entity

Mission Area, agency, and staff office employees must report the spills they cause, when the spill is at or above the reportable quantity. If a reportable spill is caused by a third party to USDA managed land, employees with knowledge of the spill should ensure that the responsible party does the reporting. Third parties include USDA's contractors. If the responsible party is not known or does not report the spill, the USDA employee must report the spill. If it is not clear whether a spill is at or above a reportable quantity, the default is to report.

(2) Reporting to the National Response Center (NRC)

- (a) Mission Area, agency, and staff office employees that cause a discharge of oil or a release of a hazardous substance at or above a reportable quantity must immediately call the NRC at (800) 424-8802. Immediate means within 15 minutes or less of discovering the spill. Reporting of a hazardous substance spill is only required if the reportable quantity is met or exceeded within 24 hours. If it is not clear if a spill occurred within 24 hours, the default is to assume it has occurred within 24 hours.

- (b) Clean Water Act regulation, [40 CFR § 110.3](#), *Discharge of Oil in such quantities as ‘may be harmful’* pursuant to section 311(b)(4) of the Act identifies an oil discharge as reportable when it causes one or more of the following conditions:

- 1 Violation of applicable water quality standards;
- 2 A film or "sheen" upon, or discoloration of the surface of the water or adjoining shorelines; or
- 3 A sludge or emulsion to be deposited beneath the surface of the water or upon adjoining shorelines.

- (c) Hazardous substances and their reportable quantities are listed in Table 302.4, [40 CFR § 302.4](#), *List of Hazardous Substances and Reportable Quantities*.

(3) Reporting to State, Local, or Tribal Planning Committees

- (a) Employees must immediately report releases of hazardous substances and extremely hazardous substances to the State or Tribal Emergency Response Commission (SERC or TERC) and Local or Tribal Emergency Planning Committee (LEPC or TEPC) if

- 1 The spill occurred on agency or staff office property;
- 2 The spill is above a reportable quantity; and
- 3 The spill may result in the exposure to someone outside the property boundaries.

- (b) Extremely hazardous substances are listed in [40 CFR § 355](#), Appendix A, *The List of Extremely Hazardous Substances and Their Threshold Planning Quantities*.

- (c) Mission Areas, agencies, and staff offices must submit a follow-up written report to the SERC or TERC and LEPC or TEPC as soon as practicable after the release.

(4) Reporting to the State

Mission Areas, agencies, and staff offices should be aware of and comply with any additional reporting required by the state where the spill occurs. This may include more stringent reporting requirements and lower thresholds for hazardous substance releases.

b. Response Operations

(1) Spills caused by a USDA Employee

- (a) The Mission Area, agency, or staff office is responsible for cleaning up the spill. This includes spills from USDA owned and operated equipment.
- (b) If the spill meets or exceeds the reportable quantity, the designated Federal On-Scene Coordinator (OSC) has the authority to oversee the response. The Mission Area, agency, or staff office must coordinate their response efforts with the designated Federal OSC or the Federal OSC's delegated state or local response agency.

(2) Spills caused by a Third Party

- (a) The Federal OSC oversees response actions for spills over a reportable quantity that are caused by a third party. The Federal OSC oversight applies whether the spill is on USDA managed land, most other Federal land, or non-Federal land. If the Federal OSC requests assistance with an oil spill, the Mission Area, agency or staff office will request a signed [Pollution Removal Funding Authorization](#) (PRFA) to reimburse their response actions, before providing assistance, as described in Section 5b(5)(b).
 - (b) The Mission Area, agency, or staff office oversees the response actions of the third party for spills under a reportable quantity. Seek reimbursement from the third party for any costs to support the response action.
- (3) The Mission Area, agency, or staff office will inform the USDA's RRT representative of any spill on USDA managed lands when a Federal OSC directs the response. This notification maintains the situational awareness of the RRT representative. The RRT representative may also be able to offer additional resources to support the response. These resources can be reimbursed through the Federal OSC.

(4) Inventory of Spills

- (a) Each Mission Area, agency, and staff office will maintain an inventory of all spills reported to any entity in the National Environmental Accomplishment Tracking (NEAT) system. The spill inventory documents the reporting and response actions. This information is essential when filling out a [Hazardous Substance Activity Certification](#), to dispose of the real property in the future.
- (b) At a minimum, the record for each spill should include the type of substance released, quantity, location, responsible party, response action taken, party conducting the response action, date(s) of release, and completed response action.

(5) Reimbursement for Emergency Response Activities

The Mission Areas, agencies, and staff offices can be reimbursed for the costs incurred responding to a third-party spill through several different mechanisms.

(a) Reimbursement from the Responsible Party. Federal agencies can file claims directly with the responsible party to recover costs incurred responding to a spill. The Federal OSC can assist with obtaining reimbursement from the responsible party. This mechanism is the most commonly used when the spill is on USDA managed land.

(b) Reimbursement through the Oil Spill Liability Trust Fund (OSLTF). A Federal OSC can also authorize payment to other federal agencies through the OSLTF for oil spill response. Reimbursement from the OSLTF is typically through a signed PRFA. Claims for reimbursement under a PRFA must be authorized by the Federal OSC and submitted to and approved by the National Pollution Funds Center. Reimbursement from the OSLTF is applicable when there is no responsible party identified or the responsible party is unable or unwilling to pay. OSLTF reimbursement is also applicable for services provided under an NRT or RRT activation.

1 The Federal OSC should issue a signed PRFA prior to a Mission Area, agency, or staff office providing aid to a response effort. However, there may be instances where the need to respond is immediate. In these cases, the responder can initiate activities and request a PRFA after the fact to cover the costs. The USCG's [National Pollution Funds Center website](#), *Pollution Removal Funding Authorizations* provides the PRFA form and instructions.

2 The PRFA includes a cost ceiling, period of performance, and statement of work. The statement of work outlines the goods and services provided. Time and travel expenses, contractor fees, expendable equipment, and daily rates for equipment use are eligible costs. Written documentation of all costs, including payroll records, is required.

(c) Reimbursement from the *Comprehensive Environmental Response, Compensation, and Liability Act* (CERCLA) or Superfund, [42 U.S.C. §§ 9601, et seq.](#) A Federal OSC may authorize payment from the Superfund for responses to releases of hazardous substances. However, the EPA rarely uses the Superfund to reimburse other Federal agencies.

(d) Reimbursement through a Mission Assignment. The cost of supporting spill response when activated under [Emergency Support Function \(ESF\) #10, Oil and Hazardous Material Response Annex](#), is partially reimbursed under a Federal Emergency Management Administration (FEMA) Mission

Assignment. FEMA issues Mission Assignments to request assistance under a Major Disaster Declaration, *Robert T. Stafford Disaster Relief and Emergency Assistance Act (Stafford Act)*, as amended, [42 U.S.C. § 5121](#). Support requested under a FEMA Mission Assignment would only be for response operations on non-Federal land. The Mission Assignment would only provide for reimbursement of staff overtime, travel, and other expenses. Responders must document all costs.

(e) Documentation for Reimbursement. To be eligible for reimbursement under any authority, the Mission Areas, agencies, and staff offices will:

- 1 Only conduct activities and request reimbursement for costs specified in the signed agreement;
- 2 Track and document all costs separately for the activities specified in the signed agreement; and
- 3 Submit required documentation of costs in accordance with the signed agreement.

c. Preparedness Planning and Coordination for Response

The NRT and RRT are key organizational elements that perform the preparedness planning and coordination for response required under the NCP. USDA is one of 16 Federal departments and agencies represented on these teams. EPA and the USCG serve as the Chair and Co-Chair respectively. Each Federal agency on these teams has responsibilities and expertise in various aspects of emergency response to pollution incidents. Being a part of the NRT and RRT commits the USDA Mission Areas, agencies, and staff offices to support nationwide spill preparedness and response activities. This support is inclusive of all private and public land.

(1) USDA Agencies and Staff Office Support Capabilities

During planning and preparedness activities or in an actual response, USDA Mission Areas, agencies, and staff offices may provide assistance in their respective areas of expertise, as described in [40 CFR § 300.175](#), *Federal agencies: additional responsibilities and assistance*, or delegated under [7 CFR Part 2](#), *Delegations of Authority by the Secretary of Agriculture and General Officers of the Department*.

- (a) OPEM serves as USDA's representative on the NRT. OPEM coordinates USDA preparedness or response activities in support of the NRT.
- (b) The Office of Homeland Security (OHS) supports intra agency and interagency coordination when the NRT declares a Spill of National Significance (SONS).

- (c) The Forest Service (FS) serves as the USDA's representative on the RRT. In this role, the FS coordinates USDA preparedness or response activities in support of the RRT. The FS capabilities include personnel, laboratory, and field resources. These capabilities allow the FS to assess and control, as needed, releases of hazardous substances on lands under their jurisdiction.
- (d) The Agriculture Research Service (ARS) has technical personnel and laboratories. ARS personnel have experience in air, soil, wastes, pesticides, radiation, and toxic substances. These capabilities allow ARS to assess and control releases of hazardous substances at their facilities.
- (e) The Animal and Plant Health Inspection Service (APHIS) has expertise in slowing the spread of diseases in plants and animals. They can assist in preventing wildlife from entering areas impacted by oil or hazardous substances.
- (f) The Food Safety and Inspection Service (FSIS) works with other Federal and state agencies to establish acceptability for slaughter of animals and their products when they have been exposed to hazardous substances.
- (g) The Natural Resources Conservation Service (NRCS) has technical specialists capable of predicting the effects of pollutants in soil and wetlands. These specialists can aid in assessing hazardous sites and provide advice on plans for response actions.

(2) RRT Functions and Representation

RRTs are responsible for planning and coordination of regional preparedness. They also support the Federal OSC in coordinating any response actions. RRTs function in two ways, as a standing team and as an incident-specific team. The roles and responsibilities of the RRTs are described in more detail in [40 CFR § 300.115](#), *Regional Response Teams*.

(a) USDA Representation

- 1 A FS staff member serves as the RRT representative for all USDA Mission Areas, agencies, and staff offices. The FS Regions do not align directly with the regions covered by the RRTs. One FS Representative may cover multiple RRT regions. In some cases, the RRT region may include states outside of the representative's FS Region.
- 2 A lead RRT representative and one or more alternates represent each RRT region. The lead representative may assign alternates who are responsible for specific states. This is particularly recommended when those states do not fall within the lead representative's FS Region.

(b) RRT Standing Team Representation

The main function of the RRT Standing Team is preparedness. It provides a mechanism for the development and coordination of preparedness activities in each region. There are multiple duties to maintain USDA representation on this interagency team.

- 1 Attend all meetings of the RRT. RRT members typically meet semi-annually.
- 2 Participate in USDA NRT and RRT quarterly meetings to share information and best practices. Assist the group in the development of standard operating procedures as needed.
- 3 Review and provide input to the Regional Contingency Plan (RCP). The RCPs identify the contact information for each Federal agency and other team members. The RCPs also include information on facilities and resources to aid response efforts.
- 4 Review and coordinate input to Area Contingency Plans (ACP) from all USDA Mission Areas, agencies, and staff offices. These plans cover areas of special economic or environmental importance that might be damaged by a discharge. These plans lay out all the considerations for removing a worst-case discharge in the area. The ACP includes a Fish and Wildlife and Sensitive Environments Plan as an annex. The annex provides the necessary information and procedures to immediately and effectively respond to spills that may adversely affect fish and wildlife and their habitat and sensitive environments. The plans consider USDA resources, especially National Forest System lands. The USDA RRT representatives should coordinate with local units covered by the ACPs, such as forests.
- 5 Participate in RRT exercises. The RRT conducts exercises to practice coordination among the members. Tabletop exercises, convened by conference call, are the most common. In a tabletop exercise, RRT members answer questions based on a spill scenario. There also may be requests for information on specific resources to support the spill response. Other exercises are of the ACPs. These exercises may have a field component. For ACP exercises, the RRT representative should coordinate participation with the local unit in the area, such as a forest.

(c) RRT Incident-specific Team Representation

The incident specific RRT coordinates assistance and provides advice to the Federal OSC during incident response. The incident-specific team is comprised of those agencies with specific expertise or those impacted by the incident. Activation of an incident specific RRT typically comes at the request

of a Federal OSC. One or more RRT members may also request an activation. One or both Co-Chairs can also activate the RRT based on the criteria specified in the NCP. When the RRT is activated, USDA representatives must be responsive to the Co-Chair's requests.

- 1 Participate on activations calls and provide technical advice to the Federal OSC, as appropriate. These activations may include conference calls to discuss the use of dispersants or other chemical and biological agents for an oil spill response. The RRT may request USDA's participation in these calls whether or not USDA resources are threatened.
- 2 Respond as soon as possible, if the Federal OSC requests USDA technical assistance or resources, as follows:
 - a Coordinate appropriate USDA resources, across all Mission Areas, agencies, and staff offices within the region;
 - b Request or assist other USDA Mission Areas, agencies, and staff offices in requesting a PRFA from the Federal OSC, prior to providing services to support the response;
 - c Coordinate with and represent the interests of the Forest unit or other local USDA unit on the RRT, if the discharge threatens USDA properties or easements; and
 - d Monitor the spill response for any RRT activation when a spill threatens or impacts USDA properties or easements.
- 3 Report and coordinate RRT activations with the USDA NRT representatives as follows:
 - a Notify the USDA NRT representative when notified by a Federal OSC of an activation of the RRT when a spill impacts or threatens the agency's property;
 - b Consult with the USDA NRT representative, as needed, when a Federal OSC requests USDA support for spill response; and
 - c Provide daily situation reports to the USDA NRT representative when taking any actions at the request of the Federal OSC on USDA managed land or other property.

(d) USDA Support to the RRT

USDA Mission Areas, agencies, and staff offices will coordinate their activities with their USDA RRT representative when they participate in an RRT activation, as follows.

- 1 Notify the USDA RRT representative when notified by a Federal OSC of an activation of the RRT when the spill impacts or threatens the agency's property.
- 2 Consult with the USDA RRT representative on any support requested by the Federal OSC to assist response efforts.
- 3 Provide daily situation reports to the USDA RRT representative of any actions in aid of the Federal OSC or for response actions taken on agency property.

(3) NRT Functions and Representation

The NRT plans for national preparedness and response, coordinates regional planning, and provides policy, guidance, and support to the RRTs. The NRT's committees and subcommittees have regular meetings to discuss planning and preparedness for response. These committees address the full range of topics to support an incident response such as environmental compliance, worker safety and training, science and technology, and national exercises. When activated during an incident, the NRT provides national-level advice and assistance. Activation of the NRT provides access to member agency resources that could not be provided at the RRT level. See [40 CFR § 300.110](#), *National Response Team* for more details on the roles and responsibilities of the NRT.

(a) USDA Representation

- 1 The OPEM EMD Chief, represents USDA on the NRT. Staff members of the EMD serve as alternate representatives.
- 2 USDA Mission Areas, agencies, and staff offices may provide technical assistance and resources in support of an NRT activation.

(b) USDA's NRT representatives will perform the following tasks:

- 1 Participate on NRT committees and subcommittees to represent USDA interests and maintain national preparedness for spill response;
- 2 Review, provide input, and approve documents and decisions distributed by the Executive Secretariat of the NRT;
- 3 Coordinate USDA participation in NRT-led exercises;

- 4 Convene periodic meetings of the RRT representatives to share information, discuss best practices, and assist with preparedness;
 - 5 Assist the USDA RRT representative, if needed, during an RRT activation;
 - 6 Consult with and coordinate resources from USDA Mission Areas, agencies, and staff offices to support an NRT activation; and
 - 7 Provide daily situation reports on spill response to the USDA Operations Center when activated for a SONS.
- (c) The USDA Mission Areas, agencies and staff offices will provide support under a NRT activation as follows:
- 1 Provide technical assistance or resources, as able, to support the spill response;
 - 2 Coordinate all activities with the USDA NRT representative and USDA RRT representative in the region of the spill; and
 - 3 Provide daily situation reports to the USDA NRT representative of any actions in support of response actions.

d. Emergency Response under ESF #10

- (1) As a NRT member, USDA is also a supporting agency to ESF #10. USDA will provide support when activated under the Stafford Act by a Mission Assignment from FEMA.
- (2) On behalf of USDA, OPEM will coordinate the request with EPA, the coordinating agency for ESF #10.
- (3) OPEM or the responding Mission Area, agency, or staff office will establish a reimbursable account to receive the Mission Assignment.
- (4) OPEM will coordinate with the Mission Areas, agencies, and staff offices to identify personnel to support the services requested under the Mission Assignment.
- (5) Mission Areas, agencies, and staff offices will assign staff or provide other services, as available, to fill the Mission Assignment.
- (6) Staff responding under the Mission Assignment will coordinate their activities directly with the ESF #10 Field Coordinator assigned to the specific mission.

- (7) Staff responding under the Mission Assignment will provide daily situation reports to OPEM.
- (8) OPEM will provide daily situation reports to the Office of Homeland Security (OHS) Operations Center on staff activities under an ESF #10 Mission Assignment.
- (9) Mission Area, agency, and staff office personnel will charge overtime and expenses to the account established for the mission for all activities conducted in support of the Mission Assignment.

e. Training Requirements

The following courses are a prerequisite for the role of the RRT representative.

- (1) [IS-0100.c](#): *An Introduction to the Incident Command System*, offered by FEMA.
- (2) [IS-1190](#): *The National Oil & Hazardous Substances Pollution Contingency Plan and Response System Independent Study Course*, offered by FEMA.
- (3) Occupational Safety and Health Administration (OSHA) Hazardous Waste Operations and Emergency Response training and annual refresher, as required by [29 CFR § 1910.120](#), *Hazardous Waste Operations and Emergency Response*.

6. CONDUCTING HAZARDOUS MATERIALS CLEANUPS

a. Critical Requirements of Agency Cleanup Programs

All USDA Mission Areas and agencies will meet these requirements when planning and conducting response actions.

- (1) Consult with EMD and OGC when a release or threat of a release of a hazardous substance, pollutant, or contaminant is discovered to determine applicable authorities and the most appropriate course of action. This consultation does not apply to emergency response actions. The following authorities should be noted:
 - (a) Except for emergency responses, USDA generally has delegated CERCLA authority when there is a release or threatened release of a CERCLA hazardous substance on or solely from USDA managed properties.
 - (b) USDA generally does not have CERCLA authority for a release not on or solely from USDA managed property. USDA also does not have authority for response when the release is not a CERCLA hazardous substance (such as petroleum). In these cases, the state agency or EPA will likely determine and oversee any response.

- (c) If a site consists of USDA managed property and other property, USDA may share the authorities with other Federal agencies. These circumstances will require close coordination with the state or EPA.
- (2) Conduct response actions in accordance with the applicable legal authority.
 - (a) Conduct response actions in accordance with the NCP when USDA has delegated CERCLA authority for the response.
 - (b) Conduct response actions in accordance with the state or EPA requirements when USDA does not have delegated CERCLA authority.
- (3) Maintain an inventory of sites where there is a release or threat of a release of hazardous substances, pollutants, or contaminants for the following types of properties:
 - (a) USDA properties where the release resulted from USDA, other Federal agency, or third-party activities, and
 - (b) Non-USDA properties where the release resulted in part or entirely from USDA activities.
- (4) Utilize the USDA NEAT system to maintain the site inventory. Populate all fields, as information is available.
- (5) At sites where USDA has delegated CERCLA authority, complete an initial site assessment to determine if there is a threat to public health, welfare, or the environment. Where there is a threat, conduct response actions in consultation with OGC and EMD.
- (6) At sites where USDA does not have delegated CERCLA authority, coordinate the appropriate actions with the state regulators or EPA, after consulting with OGC and EMD.

Prioritize the sites for cleanup using the USDA's program funding priorities. EMD reviews the factors annually to align them with USDA administration goals. The primary factors are protection of human health and the environment. The threat of enforcement from the EPA or a state regulatory agency is also a key factor.

- (7) Conduct a Potentially Responsible Party (PRP) search at each site where cleanup work is anticipated. Work with OGC and EMD to determine if there are viable PRPs. Seek a PRP clearance memo from EMD after a site assessment determines there is a release or threat of a release and prior to expending significant funds for site investigation and cleanup actions.

- (8) Report site investigation and cleanup activities each fiscal year by the end of October in NEAT. Upload the related milestone documents into NEAT. Enter the estimate to clean up each site where a decision document has been issued for the site, but the cleanup is not complete. EMD will compile and report agency cleanup accomplishments to USDA leadership. This information is used for the Hazardous Material Management Account (HMMA) annual budget report.
 - (9) Consult with EMD concerning USDA sites on the *Federal Agency Hazardous Waste Compliance Docket*, [EPA's FEDFacts website](#), to ensure appropriate actions are taken at these sites.
- b. Requirements when USDA may be a PRP
- (1) Consult with EMD and OGC to determine the applicable legal authorities and the appropriate actions to take. These actions may include identifying other PRPs.
 - (2) Work with the Federal or State regulators and other PRPs to address site conditions as appropriate following coordination with EMD and OGC.
- c. Requirements when there is a PRP other than a Federal Agency at USDA managed Properties
- (1) Consult with EMD and OGC to determine the applicable legal authorities.
 - (2) If recommended, work with OGC to execute an enforceable agreement with the PRP to ensure project completion.
 - (3) Conduct technical oversight of the PRP's project execution to ensure they comply with the agreement.
- d. Requirements when another Federal Agency is the PRP at USDA Managed Properties
- (1) Access Agreement
 - (a) Consult with OGC and EMD on applicable legal authorities and process.
 - (b) Enter into a formal agreement that authorizes access to the USDA property, consistent with site-specific factors. The agreement should, for example:
 - 1 Outline specific considerations for the cleanup actions based on sensitive site-specific resources, land management requirements, and applicable legal authorities;
 - 2 Specify the process for USDA concurrence of the documents that represent the phases and milestones of the cleanup action;

- 3 Outline a process to resolve disputes;
- 4 Describe the mechanism and level of communication necessary for USDA oversight and participation in the cleanup action; and
- 5 Require the signatures of both the PRP agency and USDA agency.

(c) Authorize on-site work only after both parties sign the agreement.

(2) Document Review

- (a) Review and comment on draft work plans, reports, and other documents produced by the other agency project team.
- (b) Establish a schedule for providing comments with the other agency. Conform to that schedule or formally request extensions.
- (c) Send a formal concurrence letter following the resolution of any comments to document the agreement reached on any issues.
- (d) Coordinate as appropriate with the state regulator.
- (e) Attempt to resolve disputes on significant issues at the project level.
- (f) After 30 business days, consult the USDA agency's leadership about unresolved disputes and the need to resolve the dispute at the next level.

(3) Records of Decision or Other Decision Documents

- (a) Selected remedies should be compatible with the future land use of the property. The remedy must account for protection for subsurface activities as well as surface activities. This is especially important when the land use is for recreation and requires routine maintenance.
- (b) Assess the appropriateness of land use controls, which may be a part of a remedy. It is important to fully understand potential mission impacts prior to agreeing to a land use control.
- (c) Verify that the decision document describes the land use controls, which may be part of a remedy. The decision document should describe the controls in sufficient detail ensure that they are appropriate and will be effective.
- (d) Verify that the decision document clearly states the role of each agency in maintaining a land use control.

- (e) Verify that the agency completing the action will implement the remedy and bear the costs.
- (f) Understand and agree with what assistance is required from the USDA agency to implement and maintain the remedy, prior to agreeing with the decision document.
- (g) Verify the operation and maintenance activities that are required to contain any waste that is left-in-place. The decision document should state that the agency that conducts the response action is responsible for the operation and maintenance activities, with limited exceptions.

(4) Project Planning and Coordination

- (a) Designate a single agency representative as the technical point of contact to coordinate with the other agency project team, state regulators, and other stakeholders.
- (b) Designate an administrative representative at the local unit level to serve as a liaison to the other agency's field team. This representative will serve as the point of contact for the project team, when they are on the ground conducting work on the USDA agency's property.
- (c) Form a USDA project team to consult with on the cleanup, including technical natural resource experts, legal staff, and line management.
- (d) Convene or participate in a kick-off meeting with the other agency, the contractor, and the state regulators to initiate project planning. Provide detailed information on the anticipated future land use in kick-off meetings.
- (e) Represent the USDA agency at all project planning meetings to ensure the mission requirements are considered in the key decisions.
- (f) Coordinate the agency's attendance at public meetings. Represent the agency's interests at all meetings.
- (g) Support the forming of a Restoration Advisory Board to help inform the cleanup actions being conducted by the Department of Defense components.
- (h) Meet with the other agency annually to review on-going cleanup actions and projects planned for future years.

(5) Operation and Maintenance

- (a) Accept responsibility only for administrative tasks to maintain a remedy that is put in place by the responsible Federal agency.

- (b) Establish a formal agreement with the responsible Federal agency to document any tasks that each agency will conduct to maintain the remedy.
- e. Requirements when there is a Third-party who is not a PRP but willing to Undertake Site Response Actions at USDA Managed Property
 - (1) Consult with OGC and EMD on applicable legal authorities and process.
 - (2) Enter into a formal agreement that authorizes access to the USDA property, consistent with site-specific factors. The agreement should, for example:
 - (a) Outline specific considerations for the cleanup actions based on sensitive site-specific resources, land management requirements, and applicable legal authorities;
 - (b) Specify the process for USDA approval or concurrence of the documents that represent the phases and milestones of the cleanup action;
 - (c) Outline a process to resolve disputes;
 - (d) Describe the mechanism, level, and frequency of communication necessary for USDA's oversight and participation in the cleanup action; and
 - (e) Require the signature of both parties.

f. Training Requirements

The following training courses or their equivalents are required for USDA OSCs and Remedial Project Managers (RPM):

- (1) EPA CERCLA Course: [Superfund 101](#);
- (2) One of the EPA CERCLA courses: [Remedial Process Training](#), [Removal Process](#), or [Removal Process for Remedial Project Managers \(RPM\)](#);
- (3) OSHA Hazardous Waste Operations and Emergency Response 40-hour and annual refresher training, as required by 29 CFR § 1910.120; and
- (4) USDA Course: CERCLA Process for USDA OSCs and RPMs.

7. HAZARDOUS MATERIALS MANAGEMENT APPROPRIATION

a. Use of HMMA Funds

- (1) HMMA funds will only be used for activities that are consistent with the current language that is stated in each annual Appropriations Act. The appropriation states: *“for necessary expenses of the Department of Agriculture, to comply with the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601, et seq.) and the Solid Waste Disposal Act ([42 U.S.C. 6901](#)), et seq. \$X,XXX,XXX to remain available until expended: Provided, That appropriations and funds available herein to the Department for Hazardous Materials Management may be transferred to any agency of the Department for its use in meeting all requirements pursuant to the above Acts on Federal and non-Federal lands”*.

- (2) Prohibited Uses of HMMA Funding

The following uses are prohibited:

- (a) Correcting issues as the result of noncompliance with environmental laws and regulations in effect at the time;
- (b) Cleaning up a contaminated property that was acquired after October 17, 1986; and
- (c) Paying fines or penalties resulting from agency violations.

- b. Selection Process for HMMA Funding

- (1) EMD requests project proposals for HMMA funding based on the funding availability.
- (2) The agencies will use a standard form provided for submitting funding requests. This form delineates required project information and describes the criteria to evaluate and rank the proposals. The form is made available as part the EMD’s annual data call.
- (3) EMD reviews the project proposals for eligibility and completeness. EMD then ranks the eligible projects for the USDA Project Priority List (PPL).
- (4) EMD ranks the projects for HMMA funding based on the risk to human health and the environment and certain modifying factors. The ranking criteria are determined by the USDA program funding priorities that are reviewed annually.
- (5) EMD generally funds projects on the USDA PPL in rank order and in the year the project is planned. EMD may use its discretion to fund projects out of order. Final funding decisions will consider the best fit based on funding availability, project readiness, or changes in site conditions that result in an immediate threat to human health or the environment.

c. Project Funding Procedures

- (1) EMD gives HMMA funds to the agencies using the Bureau of the Fiscal Service Interagency Agreement (IAA) Between Federal Agencies Standard Forms [7600A](#), *General Terms and Conditions Section* and [7600B](#), *Order Requirements and Funding Information Section*.
 - (a) EMD asks the agency to submit IAA forms and a scope of work for the project and an updated cost estimate for EMD review.
 - (b) EMD sends the IAA to the Office of the Chief Financial Officer, Financial Management Division (FMD) staff for review. The FMD staff return the IAA to EMD.
 - (c) EMD sends the IAA to the agency for signature. The agency submits the signed IAA to EMD.
 - (d) EMD sends the IAA to the OPEM Director for signature.
 - (e) EMD sends the IAA to the FMD staff for signature by the FMD Branch Chief. Points of Contact signatures are optional. The IAA is final once the Program Officials and Funding Officials sign.
 - (f) FMD establishes the purchase order and sends the signed IAA and a screen shot of the purchase order to EMD.
 - (g) EMD distributes the signed IAA and purchase order to the agency.
 - (h) EMD enters the IAA information into NEAT.
- (2) The agencies will notify EMD promptly when they expect the project costs will exceed the allocated amount. Agencies may request additional HMMA funding to cover these costs. EMD will evaluate each request on a case-by-case basis. EMD may approve, at its discretion, additional funding for a project. Approval depends on the amount requested, the reasons for the excess costs, and the availability of funds. If approved, EMD will work with the agency to modify the IAA to include the new project costs.

d. Monitoring HMMA Spending

- (1) Agencies must conduct cleanup projects in a manner consistent with the NCP. EMD will monitor compliance with the NCP through project reviews, financial evaluations, field visits, and the review of milestone documents.
- (2) Each quarter, FMD will prepare an Unliquidated Obligations (ULO) Report for EMD showing spent and obligated amounts for each active IAA. For practical

purposes, FMD tracks only those obligations that are more than a year old. The OPEM Director reviews and certifies the ULO Report as valid, in accordance with the procedures in [DR 2230-001](#), *Reviews of Unliquidated Obligations*.

e. Project Closeout Procedure

- (1) When the agencies complete a project, they will notify EMD of any unexpended HMMA funds.
- (2) The agencies will de-obligate the unexpended funds by modifying the IAA using the procedures outlined in Section 7c(1) or by reducing the sales order and submitting a closure letter.
- (3) EMD reviews and the OPEM Director signs the modified IAA and sends it to FMD for processing.
- (4) Upon receipt of the IAA modification or closure letter, FMD will zero out the funds in the associated purchase order (PO) and mark the PO as final.
- (5) EMD will apply returned HMMA funds to other projects on the USDA PPL as funds allow.

8. ENVIRONMENTAL LIABILITY

To minimize liability, the following procedures are established to evaluate properties prior to land transfers. These procedures do not apply to partial interests in real property, such as rights-of-way or other easements.

a. Acquisitions

Acquisitions include any process by which USDA may obtain real property including purchase, lease, transfer, exchange, gift, or foreclosure.

(1) All-Appropriate Inquiries Standard

The Mission Areas, agencies, and staff offices will comply with the All-Appropriate Inquiries Standard (AAI), [40 CFR Part 312](#), *Innocent Landowners, Standards for Conducting All Appropriate Inquiries*, for acquisition of real property. See [ECM 10-2](#), *Pre-Acquisition Environmental Assessment Guidance for Federal Land Transactions*. The ECM presents an overview of the AAI requirements and guidelines for Federal agencies.

(2) Required Investigations and Remediation

(a) All Actions, except for Foreclosures

- 1 Perform a Phase I Environmental Site Assessment (ESA). The American Society for Testing and Materials (ASTM) standard practice guides are useful to meet the AAI requirement:
 - a [ASTM 1527-21](#), *Standard Practice for Environmental Site Assessments: Phase I Environmental Site Assessment Process* and
 - b [ASTM E2247-16](#), *Standard Practice for Environmental Site Assessments: Phase I Environmental Site Assessment Process for Forestland or Rural Property*.
- 2 Update the Phase I ESA, as needed, in accordance with the AAI requirement. The ESA must be dated not more than 180 calendar days prior to completing the acquisition.
- 3 Exceptions to complying with the AAI requirement require notification to OPEM.
 - a For acquisitions that are subject to OPEM review, submit a memorandum with the review package to justify any noncompliance with the AAI requirement. Include any existing information on the environmental condition of the property with the memorandum.
 - b For acquisitions that are not subject to OPEM review, justify the noncompliance with the AAI requirement in an acquisition-specific memorandum. Save the memorandum to the acquisition file. Send a copy to OPEM.
- 4 When acquiring real property from a Federal agency, the Mission Areas, agencies, and staff offices may perform an Environmental Baseline Survey (EBS), instead of a Phase I ESA. Use [ASTM D6008-96\(2014\)](#), *Standard Practice for Conducting Environmental Baseline Surveys* to conduct an EBS.
- 5 If the Phase I ESA or EBS indicates that a recognized environmental condition (REC) is present, take steps to ensure the REC is resolved prior to the acquisition. This may include performing or requesting the seller perform a Phase II ESA. Use [ASTM E1903-19](#), *Standard Practice for Environmental Site Assessments: Phase II Environmental Site Assessment Process* to conduct a Phase II ESA.
- 6 If an environmental release is identified, the Mission Areas, agencies, and staff offices will take one of the following actions:

- a Require the seller to remediate the property to make it safe for the intended land use;
- b Provide appropriate compensation for cleanup costs; or
- c Exclude the contaminated portion of the parcel from the acquisition.

(b) Foreclosure Actions

- 1 The Mission Area or agency will perform a Phase I ESA or a complete a transaction screen within 180 calendar days prior to completing the foreclosure. The transaction screen should conform with [ASTM E1528-22](#), *Standard Practice for Limited Environmental Due Diligence: Transaction Screen Process*.
- 2 If the Phase I ESA indicates that a REC is present, perform a Phase II ESA, before deciding to foreclose.
- 3 If the transaction screen indicates potential environmental concerns, perform a Phase I or Phase II ESA, before deciding to foreclose.

(3) Review Procedures for Acquisitions, except Foreclosures.

- (a) The Mission Areas, agencies, and staff offices will submit the acquisition proposals required for review by OPEM to OGC and the OPEM Property Management Division (PMD), in accordance with [DR 5100-004](#), *Real Property Management*.
- (b) The proposal should contain all the environmental data that is available. At a minimum, the proposal will include the Phase I and Phase II ESAs and any information on remediation of the property.
- (c) PMD will forward the proposal to EMD for environmental review.
- (d) EMD will review the proposal and make a recommendation depending on the property type.
 - 1 For unimproved land, EMD will make a recommendation to the Director of OPEM to approve or disapprove the acquisition.
 - 2 For improved land, that is valued at more than \$1,500,000, EMD will make a recommendation to the Assistant Secretary for Administration to approve or disapprove the acquisition.

- 3 For land that is specifically authorized by Congress, EMD will make a recommendation to the Mission Area, agency, or staff office that is acquiring the property regarding any contamination that may be present.
 - (e) EMD may request additional data prior to making a recommendation.
 - (f) OGC will review the proposal separately and also provide a recommendation.
- (4) Review Procedures for Foreclosures
 - (a) The following types of properties require an environmental review prior to foreclosure:
 - 1 Commercial property;
 - 2 Farms; and
 - 3 Other non-residential property.
 - (b) The Mission Areas, agencies, and staff offices will submit all environmental documentation for OGC and EMD review.
 - (c) OGC will review the Phase I ESA and any other available environmental data and consult with EMD.
 - (d) EMD will make a recommendation to the Mission Area, agency, or staff office regarding whether additional environmental due diligence is necessary.
 - (e) To avoid liability on a foreclosed property with evidence of contamination, USDA should not be involved in the management of the property except to preserve its security interests and prepare it for sale. OGC will be consulted prior to any decision to foreclose on property with known or suspected contamination.

b. Disposals

- (1) The requirements of CERCLA Section 120(h), [42 U.S.C. § 9620\(h\)](#), *Properties transferred by Federal agencies* will be followed when the Mission areas and agencies dispose of USDA managed land.
- (2) Contents of Deeds
 - (a) Provide a notice in the deed of hazardous substance activity to the purchaser.
 - (b) Include a covenant in the deed stating that all remedial action necessary to protect human health and the environment with respect to any substance

remaining on the property has been taken before the date of transfer. Consult with the OGC regarding any possible exceptions to this requirement. Exceptions to this requirement could include not conducting a remedial action if conveying the property to a PRP.

- (c) Consult with OGC to determine the scope of any necessary covenants regarding future cleanup at the property.
- (d) Include any necessary covenants that restrict future land use in the deed.
- (e) Include a clause granting the United States access to the property for any case in which the property would require remedial or corrective action after the date of transfer.

(3) Disposal after Foreclosures

- (a) The requirements of CERCLA Section 120(h) do not typically apply to real property disposals following foreclosures by USDA agencies, with exceptions.
- (b) Consult with EMD and OGC to ensure that the disposal qualifies for the CERCLA secured creditor exemption, and the Section 120(h) requirements do not apply.

(4) Review Procedures for Disposals

- (a) The Mission Areas, agencies, and staff offices will submit the disposal packages to OGC and PMD, in accordance with DR 5100-004.
- (b) If hazardous substance activity occurred at the site, the disposal package should contain:
 - 1 All environmental data that is available; and
 - 2 An EBS, Phase I ESA, or other document that meets CERCLA 120(h) requirements.
- (c) PMD will provide the disposal packages to EMD.
- (d) EMD will:
 - 1 Review the packages;
 - 2 Consult with OGC as appropriate; and
 - 3 Advise PMD regarding any contamination that may remain on the property.

9. PROGRAM REVIEWS AND DATA CALLS

a. Program Reviews

OPEM EMD will conduct program reviews to monitor agency and staff office compliance with the policies established in DR 5600-005 and the guidance provided in this Manual.

- (1) EMD will conduct program reviews of each agency, agency region, or staff office, with applicable environmental requirements, approximately once every three years.
- (2) The program review will assess the agency's or staff office's compliance with CERCLA and the Resource Conservation and Recovery Act (RCRA), program management, use of HMMA funds, legal matters, agency and staff office needs, site-specific concerns, and how best EMD can assist. Environmental compliance reviews to monitor the agencies' and staff offices' compliance with requirements documented in the ECPs, may be conducted concurrently or at a different time.
- (3) EMD will notify the agencies at least 60 calendar days prior to the review and provide a list of questions or topics to be discussed during the review.
- (4) The agencies and staff offices will coordinate with the relevant staff to review the list of questions and topics. Environmental Program Managers, OSCs, RPMs, the program lead for facility compliance, RRT representatives, and other technical staff that have responsibility in managing the environmental programs, should be available to participate in the program review.
- (5) After the program review, EMD will prepare a written summary report, focusing on conformance with DR 5600-005 and DM 5600-001. The report will include recommendations for improvement. The agencies and staff offices will have an opportunity to comment on the draft report prior to finalizing.

b. Data Calls

OPEM EMD conducts annual and periodic data calls to gather agency and staff office information about the Environmental Program.

- (1) The annual data call is initiated in the fourth quarter of the fiscal year with a turnaround time of 30 calendar days. Detailed instructions for completing the data call are provided in the request. The request for information includes the following items, although all items may not be applicable to all agencies or staff offices:
 - (a) Prior fiscal year funding and request for current year funding from the HMMA;

- (b) Estimate of total environmental liability;
 - (c) List of NOV's and notices of non-compliance;
 - (d) List of state and Federal reportable spills;
 - (e) List of accomplishments or activities for cleanup sites and completed key milestone documents; and
 - (f) Written narratives of successful projects.
- (2) Periodic data calls may be initiated throughout the year to inform USDA policy or respond to leadership inquiries. Turnaround times for these data calls will vary depending on the complexity of the request.

10. ROLES AND RESPONSIBILITIES

a. The Director, OPEM will:

- (1) Formulate and execute HMMA funds according to appropriation requirements;
- (2) Review all enforceable agreements and approve Unilateral Administrative Orders that are issued to a PRP;
- (3) Review and approve IAAs to distribute or close out HMMA funds, as detailed in Section 7c and 7e;
- (4) Review and certify the HMMA ULO report, quarterly;
- (5) Review the acquisition and disposal of real property with the agencies, as detailed in Sections 8a(3)-(4) and 8b(4); and
- (6) Coordinate with the Director, OHS on:
 - (a) Intra agency and interagency response efforts when a SONS is declared; and
 - (b) Senior level exercises, where the scenario includes an NRT activation.

b. The Chief, OPEM EMD will:

- (1) Represent USDA on the NRT and coordinate USDA's responsibilities for environmental preparedness and emergency response, as specified in Sections 5c(3) and 5d;

- (2) Coordinate with the Environmental Program Managers on reporting requirements, initiation of response activities, HMMA funding requests, program reviews, and data calls, as specified in Sections 4d(2), 6a-e, 7b-e and 9; and
 - (3) Coordinate the review of the acquisition and disposal of real property with the agencies, as detailed in Section 8a(3)-(4) and 8b(3)-(4).
- c. The Heads, USDA Mission Areas, agencies, and staff offices, as appropriate, will
- (1) Establish policy and procedures to:
 - (a) Prepare ECPs and conform with the requirements of those ECPs, as detailed in Sections 4a-d;
 - (b) Implement corrective actions resulting from NOV's to meet the required timelines, as specified in Section 4d;
 - (c) Notify, coordinate, and respond to discharges of oil or releases of hazardous substances, as detailed in Sections 5a-b;
 - (d) Track costs separately for any actions taken to respond to third party spills, as detailed in Section 5b(5)(e);
 - (e) Provide assistance to the Federal OSC and coordinate with the USDA NRT and RRT representatives, as detailed in Sections 5c(1), 5c(2)(d), 5c(3), and 5d;
 - (f) Conduct and oversee cleanup actions, as detailed in Sections 6a-e;
 - (g) Review and approve enforceable agreements that are issued to a PRP;
 - (h) Request and manage HMMA funding for cleanup projects, as detailed in Sections 7a-e;
 - (i) Conduct environmental reviews to acquire and dispose of real property, as detailed in Sections 8a(1)-(2) and 8b(1)-(2);
 - (j) Coordinate the review of the acquisition and disposal of real property with OPEM and OGC, as detailed in Sections 8a(3)-(4) and 8b(3)-(4);
 - (k) Train employees on the environmental requirements for their staff positions, as detailed in Sections 4e and 6f and maintain records of the training;
 - (l) Include a requirement to comply with all applicable environmental regulations in contracts or permits, for any USDA contractors, permittees, concessionaires, or grantees;

- (m) Coordinate environmental program reviews with OPEM EMD and implement changes to address OPEM's program review recommendations, as detailed in Section 9a; and
 - (n) Respond to data calls, as detailed in Section 9b.
- (2) Establish and maintain internal controls to ensure compliance with the requirements of DR 5600-005, in accordance with the procedures and standards stated under [DR 1110-002](#), *Management's Responsibility for Internal Control*; and
- (3) Assign an Environmental Program Manager to lead environmental program compliance and reporting, as specified in DR 5600-005, Section 5d(1).
- d. The Chief, USDA FS, in addition to duties listed in Section 10c, will:
 - (1) Assign primary and alternative representatives to each of the 13 RRTs on behalf of USDA as detailed in Section 5c(2)(a);
 - (2) Establish policy and procedures to represent USDA on the 13 RRTs, as detailed in Section 5c(2)(b)-(c); and
 - (3) Train employees on the environmental requirements for their staff positions, as detailed in Section 5e.
- e. The Director, OHS will:
 - (1) Support intra and interagency coordination in conjunction with the OPEM Director when a SONS is declared; and
 - (2) Coordinate with the OPEM Director on senior level exercises that include an NRT activation.
- f. The Chief, FMD will:
 - (1) Review, approve, and issue IAAs and purchase orders to distribute HMMA funding;
 - (2) Track ULO for each IAA funded by the HMMA; and
 - (3) Prepare an ULO report for each IAA at the end of each quarter.
- g. The General Counsel will:
 - (1) Advise OPEM, the Mission Areas, agencies, and other staff offices on environmental compliance requirements and activities, and review NOV's, as specified in Section 4d(2);

- (2) Assist OPEM, the agencies, and other staff offices with response, enforcement, cost recovery, and related activities, as specified in Section 6; and
 - (3) Provide legal review for proposed real property transactions involving known or suspected contamination, as specified in Sections 8a(3)-(4) and 8b(3)-(4).
- h. The Environmental Program Manager for a Mission Area, agency, and the Office of Operations will:
 - (1) Support the head of their Mission Area, agency, or staff office, as appropriate, in implementing and managing the environmental management program;
 - (2) Coordinate with OPEM as the single point of contact for the Mission Area, agency, or staff office environmental program;
 - (3) Coordinate with OGC on response, enforcement, and cost recovery activities, as specified in Sections 6a(8) and 6b-6e;
 - (4) Coordinate with OPEM on reporting requirements, initiation of response activities, HMMA funding requests, data calls, and program reviews, as specified in Sections 4d(2), 6a-6e, and 7b-e, 8c, and 9; and
 - (5) Maintain a site inventory and environmental accomplishment information and documents in the USDA's NEAT system, as specified in Section 5b(4), 6a(4), and 6a(9).
- i. The USDA RRT representative and alternates will conduct the duties detailed in Section 5c(2).

11. INQUIRES

All USDA Mission Areas, agencies, and staff offices must send inquiries regarding this DR to OPEM at SM.OPEM.EMD@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

AAI	All Appropriate Inquiries
ACP	Area Contingency Plan
APHIS	Animal and Plant Health Inspection Service
ARS	Agricultural Research Service
ASTM	American Society for Testing and Materials
CERCLA	Comprehensive Environmental Response, Compensation, and Liability Act
CFR	Code of Federal Regulations
DM	Departmental Manual
DR	Departmental Regulation
EBS	Environmental Baseline Survey
ECP	Environmental Compliance Plan
EMD	Environmental Management Division
EPA	U.S. Environmental Protection Agency
ESA	Environmental Site Assessment
ESF #10	Emergency Support Function 10 – Oil and Hazardous Materials Response
FEMA	Federal Emergency Management Agency
FMD	Financial Management Division
FS	Forest Service
FSIS	Food Safety and Inspection Service
HMMA	Hazardous Materials Management Appropriation
HVAC	Heating, Ventilation, and Air Conditioning
IAA	Interagency Agreement
LEPC	Local Emergency Planning Committee
NCP	National Contingency Plan
NEAT	National Environmental Accomplishment Tracking
NOV	Notice of Violation
NPDES	National Pollutant Discharge Elimination System
NPFC	National Pollution Funds Center
NRC	National Response Center
NRCS	Natural Resources Conservation Service
NRT	National Response Team
OGC	Office of the General Counsel
OHS	Office of Homeland Security
OPA	Oil Pollution Act
OPEM	Office of Property and Environmental Management
OSC	On-Scene Coordinator
OSHA	Occupational Safety and Health Administration
OSLTF	Oil Spill Liability Trust Fund
PMD	Property Management Division
PO	Purchase Order
PPL	Project Priority List

PRFA	Pollution Removal Funding Authorization
PRP	Potentially Responsible Party
RCP	Regional Contingency Plan
RCRA	Resource Conservation and Recovery Act
REC	Recognized Environmental Condition
RPM	Remedial Project Manager
RRT	Regional Response Team
SERC	State Emergency Response Commission
SONS	Spill of National Significance
SPCC	Spill Prevention, Control, and Countermeasure
Stafford Act	Robert T. Stafford Disaster Relief and Emergency Assistance Act
SWDA	Solid Waste Disposal Act
TEAM	The Environmental Assessment and Management
TEPC	Tribal Emergency Planning Committee
TERC	Tribal Emergency Response Commission
ULO	Unliquidated Obligations
U.S.C.	United States Code
USCG	United States Coast Guard
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Agency. Organizational units of the Department, other than staff offices as defined below, whose heads report to officials within the Office of the Secretary, Deputy Secretary, Under Secretaries, Assistant Secretaries, and Assistant to the Secretary. (Source: USDA, [DR 0100-001](#), *Departmental Directives System*)

All Appropriate Inquiries. An inquiry into the previous ownership and uses of a facility in accordance with generally accepted good commercial and customary standards and practices, that are codified in [40 CFR Part 312](#), *Innocent Land Owners, Standards for Conducting All Appropriate Inquiries*. (Source: [42 U.S.C. § 9601\(35\)\(B\)\(i\)\(I\)](#), *Hazardous Substances Releases, Liabilities, and Compensation, Definitions*)

Environmental Audit. A systematic, documented, periodic, and objective review of facility operations and practices related to meeting environmental requirements. (Source: [EPA 300-B-96-011](#), *Environmental Audit Program Design Guidelines for Federal Agencies*)

Hazardous Substance. Elements, compounds, and wastes designated in Table 302.4—*List of hazardous substances and reportable quantities*. (Source: [40 CFR § 302.4](#), *NCP, Designations of Hazardous Substances*)

Mission Area. A group of agencies with related functions that report to the same Under or Assistant Secretary. Research, Education, and Economics is an example of a Mission Area. (Source: USDA, DR 0100-001)

Mission Assignment. A work order issued by FEMA to another Federal agency directing completion of a specified task and citing funding, other managerial controls, and guidance. (Source: [44 CFR § 206.2](#), *Federal Disaster Assistance, Definitions*)

Notice of Violation (NOV). Any written notice from a Federal, State, or local entity with authority to enforce environmental laws and regulations to a Mission Area, agency, or staff office stating they have violated an environmental law or other requirement.

Oil. Oil of any kind or in any form, including petroleum, fuel oil, sludge, oil refuse, and oil mixed with wastes other than dredged spoil, but does not include any substance which is specifically listed or designated as a hazardous substance under subparagraphs (A) through (F) of Section 101(14) of [CERCLA](#) and which is subject to the provisions of that Act. (Source: [33 U.S.C §§ 2701](#), *Oil Pollution Liability and Compensation*)

Oil Spill. Also, oil discharge. An occurrence or series of occurrences having the same origin, involving one or more vessels, facilities, or any combination thereof, resulting in the discharge or substantial threat of discharge of oil into or upon navigable waters of the United States, adjoining

shorelines, or the exclusive economic zone. (Source: USCG, [National Pollution Funds Center \(NPFC\) User Reference Guide](#), USCG NPFC website)

Oil Spill Liability Trust Fund (OSLTF). The fund authorized under the *Oil Pollution Act (OPA)*, 33 U.S.C. §§ 2701, *et seq.* to pay for expeditious oil removal and uncompensated damages from oil spills. The USCG's NPFC is responsible for managing and administering the Fund, including adjudicating claims. (Source: USCG, [NPFC User Reference Guide](#), USCG NPFC website)

Pollutant or contaminant. Any element, substance, compound, mixture, or disease-causing agents defined by Section 101(33) of CERCLA. (Source: [40 CFR § 300.5](#), *NCP, Definitions*)

Pollution Removal Funding Authorization (PRFA). A financial obligation document that commits the OSLTF to payment, by reimbursement, of costs incurred in pollution response activities undertaken by another government agency working for the Federal OSC. (Source: USCG, NPFC User Reference Guide)

Potentially Responsible Party (PRP). Any person who may be liable pursuant to Section 107(a) of CERCLA, for response costs incurred and to be incurred by the United States not inconsistent with the NCP. (Source: [40 CFR § 304.12](#), *Arbitration Procedures for Small Superfund Cost Recovery Claims*)

Recognized Environmental Condition. The presence of hazardous substances or petroleum products in, on, or at a property due to a release to the environment; the likely presence of hazardous substances or petroleum products in, on, or at a property due to a release or likely release to the environment; or the presence of hazardous substances or petroleum products in, on, or at a property under conditions that pose a material threat of a future release to the environment. (Source: ASTM E1527-21)

Release. Any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, or disposing into the environment (including the abandonment or discarding of barrels, containers, and other closed receptacles) of any toxic chemical. (Source: [40 CFR § 372.3](#), *Toxic Chemical Release Reporting: Community Right-To-Know*)

Spill. Collective term for release of hazardous substances or discharge of oil.

Staff Office. Departmental administrative offices whose heads report to officials within the Office of the Secretary. (Source: USDA, DR 0100-001)

Waters of the United States. Defined in *Water Programs, Definition of Waters of the United States*, [40 CFR § 120.2](#), *et seq.*

APPENDIX C

AUTHORITIES AND REFERENCES

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